

**IN THE COURT OF APPEAL OF THE DEMOCRATIC SOCIALIST
REPUBLIC OF SRI LANKA**

**In the matter of an Appeal made
under Section 331 of the Code of
Criminal Procedure Act No. 15 of
1979.**

Kumaragama Palis Mudiyanse
Sanath Dayawansa *ailas* Shantha

Accused-Appellant

CA/HCC/146/2025

Vs.

High Court of Puttalam
Case No. HC 52/2019

The Hon. Attorney General
Attorney General's Department,
Colombo 12.

Respondent

Before: **Amal Ranaraja, J.**
 Dr. Sumudu Premachandra, J.

Counsel: Ershan Ariaratnam for the Accused-Appellant
 Wasantha Perera, D.S.G. for the State

Argued on: 25.06.2026
Judgment on: 09.07.2026

Judgment

Amal Ranaraja. J,

1. The accused-appellant (hereinafter referred to as the ‘appellant’) has been indicted in the High Court of *Puttalam* in Case No HC-52-19. The charge in the indictment is as follows;

01. On or around the 07th of February, 2011, within the jurisdiction of this Court, in *Gamudawa*, you have committed rape against one, *Pulhiri Henyalage Nimali Pushpakumari*, a minor under 18 years of age, breaching section 364(2)(e) of the Penal Code of Sri Lanka; thereby you have committed an offence, punishable under Section 364(2) of the Penal Code as amended by Penal Code (Amendment) Act No. 22 of 1995.

2. At the conclusion of the trial, the appellant has been convicted of the charge and sentenced as follows;

- i. A term of 12 years rigorous imprisonment has been imposed on the appellant. Also fined Rs.10,000.00 with a term of 6 months simple imprisonment in default.
- ii. The appellant has also been directed to pay a sum of Rs. 200,000.00 as compensation to PW01 with a term of 1-year simple imprisonment in default.

3. The appellant aggrieved by the conviction, disputed judgement and the sentencing order has preferred the instant appeal to this Court.

Case of the Prosecution

4. PW02 is the wife of PW01's brother. The appellant is PW02's brother. On the day of the incident PW01, PW02, and the appellant have travelled to *Anamaduwa*, to obtain medicine for PW02's child. PW02 has not joined the return trip. She has asked PW01 to go home and advised her on where to alight from the bus. Apparently, the appellant has also been on the bus that PW01 took to go home. Midway through the journey, the appellant has tricked PW01 into alighting from the bus, taken her to a jungle area, and committed rape.
5. Following the "first complaint", an investigation has commenced. PW01 has been presented for a medical examination, which has been conducted by *Dr. D.K. Wijewardhana*, consultant Judicial Medical Officer. The resulting medico-legal report has been produced as evidence, marked *ඒ01*.

Case of the Appellant

6. The appellant has maintained that he has no involvement in the incident referred to in the charge, and that he was employed in *Colombo* when he was arrested by the police.

Ground of Appeal

7. When the matter was taken up for argument, the learned counsel appearing on behalf of the appellant urged the following ground of appeal;
 - I. The learned High Court Judge has failed to consider the credibility and probability of PW01.
8. The appellant, by drawing the Court's attention to the testimony at pages 146 and 170 of the briefs, contends that the appellant has not boarded

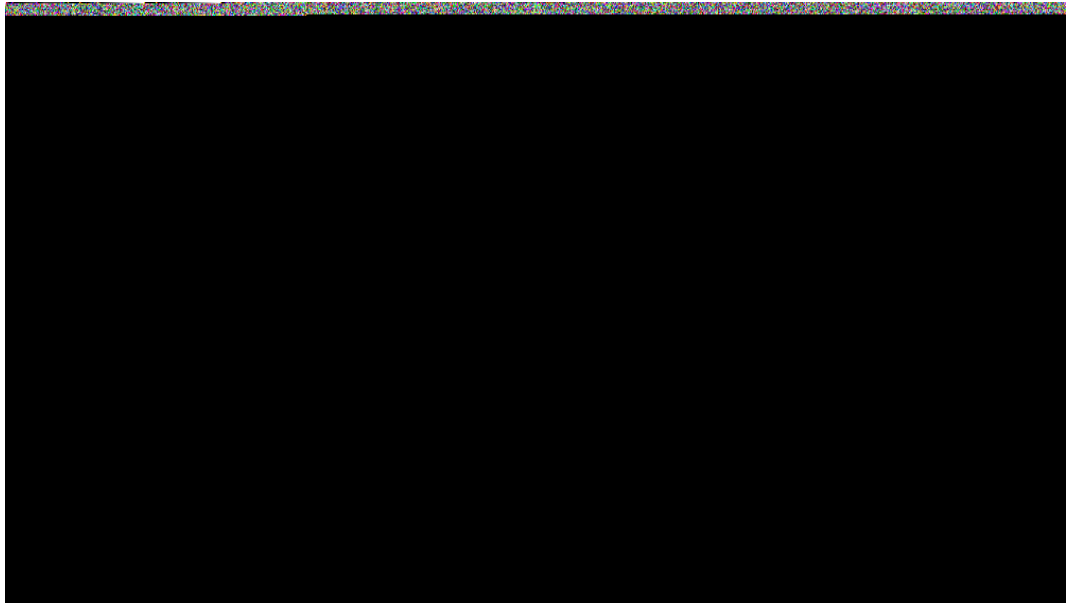
the bus on which PW01 travelled home, and therefore, has argued that the incident described by PW01 was improbable.

9. A proper reading of the evidence does not support that contention. The testimony shows that PW01, PW02, and the appellant, have travelled to the location where PW01 later boarded the bus. PW02 has remained at the location until PW01 boarded. The testimony further indicates that, at about that time, the appellant had gone into a nearby shop. Upon PW01 boarding the bus, PW02 has moved away from the area.
10. Importantly, PW02 has not been concerned with, and has not accounted for, the appellant's whereabouts at that point. There is also no evidence that the appellant accompanied PW02 to wherever she proceeded after leaving the location.
11. In those circumstances PW02's evidence cannot reasonably be taken as excluding the possibility that the appellant subsequently left the shop and boarded the same bus as PW01. PW02 has simply not been in a position to state whether the appellant did or did not board the bus after she left the area. Accordingly, the appellant's argument, premised on the assertion that the appellant could not have been on the bus with PW01, rests on speculation rather than proven fact and it lacks merit.
12. The appellant has also contended that though PW01 has testified that she had bled after the incident involving the appellant, the doctor who conducted the medical examination on PW01 has not observed any injury to her hymen to corroborate this position.
13. Bleeding after intercourse, known medically as postcoital bleeding, may arise from various issues. They include among others,
 - i. Vaginal dryness or friction
 - ii. Cervical inflammation – The narrow tube-like end of the uterus (the cervix) can become irritated and highly sensitive, leading it to bleed when touched.

- iii. Cervical ectropion also known as cervical eversion - This occurs when delicate cells that line the inside of the cervical canal spread to the outside surface of the cervix. These cells are fragile and prone to bleeding upon contact.
- iv. Cervical polyps – These are small growths that form on the cervix or inside the uterus as they are rich in blood vessels, they can easily rupture or tear during physical impact of sex.

Therefore, the absence of injury to the hymen cannot exclude the possibility of PW01 bleeding after the incident.

- 14. Further, it is crucial to acknowledge that psychological states, including anxiety, fear, and distress, can impact sexual arousal and response. Distress typically triggers the body's fight response, which can inhibit sexual arousal. However, the body's responses to psychological states can be complex. In certain instances, individuals may experience physiological reactions associated with sexual arousal, including lubrication, despite being in a state of distress.
- 15. This paradox arises from the body's capacity to experience conflicting signals. While distress may inhibit conscious arousal, it does not entirely preclude physiological responses. The presence of lubrication under such circumstances cannot be interpreted as consent or readiness for sexual activity, rather it reflects the intricate nature of human physiology or how the various systems of the human body work individually or together.
- 16. Consent must be affirmative, informed and freely given. It would be dangerous to infer the same, from physiological responses. Therefore, while lubrication may occur during distress, it does not equate to individual's willingness or desire to engage in sexual activity.
- 17. PW01 describing the incident involving the appellant to *Dr. Wijewardhana* has stated thus;



Pages 604 & 605 of the Brief

18. PW01 has therefore, been consistent in her narrative from the outset. Her version of events has remained substantially the same in all material respects and there are no significant contradictions on the core facts.
19. Importantly, she has disclosed the incident promptly to a civilian and thereafter, reported the matter to the law enforcement authorities without undue delay. This sequence of prompt disclosure and reporting supports the reliability of her account, as it suggests she has acted contemporaneously, and before any opportunity for coaching or reconstruction.
20. In those circumstances, I am not inclined to interfere with the conviction, disputed judgement and sentencing order. I proceed to affirm the same.

21. However, I make no order regarding costs.

Appeal dismissed.

22. The Registrar of this Court is directed to send this Judgement to the High Court in *Puttalam* for compliance.

Judge of the Court of Appeal

Dr. Sumudu Premachandra, J.

I agree

Judge of the Court of Appeal